

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

24CV000384

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026, at 8:30 a.m. in Dept. A. Plaintiff is to provide *timely*, code-compliant notice of the continued hearing. If Plaintiff is unable to provide timely notice of the next hearing, the motion may be denied without prejudice.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) The last day to provide notice, by mail from Arizona, of the instant hearing was June 8, 2026. (See Code Civ. Proc. §§1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing” and “if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by . . . 10 calendar days if . . . the place of mailing . . . is outside the State of California . . .”]) The proof on file indicates service on June 15, 2026. Plaintiff, therefore, failed to provide adequate notice of the hearing date.

This is Plaintiff's second failure to provide adequate notice of the hearing. Subsequent failure to do so may result in the Court denying the motion without prejudice.

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- [1] DEFENDANTS' MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960
and
[2] DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; TO COMPEL PRODUCTION OF DOCUMENTS; COMPEL COMPLIANCE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,460

TENTATIVE RULING: Both matters are CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. B to allow the moving party to provide sufficient notice of the motions.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 16, 2026 was the last day for service, by electronic means, of a notice and papers filed in support of a motion set for hearing on July 14, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) The evidence of service before the Court indicates electronic service on June 29, 2026. As such, the moving party failed to serve the notice and moving papers 18 court days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].) Even if substantive oppositions are filed after the drafting of this Tentative Ruling, the moving party still failed to provide sufficient notice to the Court by failing to *file* the motions 16 court days before the hearing. (See Code Civ. Proc., § 1005, subd. (b).)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and then (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

- [3] DEFENDANTS' MOTION FOR TERMINATING OR ISSUE SANCTIONS AGAINST PLAINTIFF

TENTATIVE RULING: The motion is GRANTED IN PART. The motion for terminating sanctions is DENIED. The motion for issue/evidentiary sanctions is GRANTED. Plaintiff is barred from introducing the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson, and the factfinder shall be instructed to presume that the communications on Plaintiff's phone referenced in her February 25 deposition between her and Ms. Carlson do not contain information supporting Plaintiff's testimony.

The moving party is directed to immediately provide, by telephone call AND email, notice of the Court's tentative ruling system under Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in